



ARIZONA HOUSE OF REPRESENTATIVES FLOOR AMENDMENT EXPLANATION

57th Legislature, 2nd Regular Session

Majority Research Staff

HB 2456: small modular reactors; zoning; co-location

KOLODIN FLOOR AMENDMENT

1. Specifies that this act applies to extra high load factor customer as defined by the Corporation Commission.
2. Modifies definitions.
3. Removes the requirement that the Corporation Commission adopt rules to adopt this act.

ADDITIONAL COW
KOLODIN FLOOR AMENDMENT
HOUSE OF REPRESENTATIVES AMENDMENTS TO H.B. 2456
(Reference to House engrossed bill)

Amendment instruction key:

[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or previously enacted session law.
[Green underlining in brackets] indicates text added to new session law or text restoring existing law.
[GREEN STRIKEOUT IN BRACKETS] indicates new text removed from statute or previously enacted session law.
[Green strikeout in brackets] indicates text removed from existing statute, previously enacted session law or new session law.
<<Green carets>> indicate a section added to the bill.
<<Green strikeout in carets>> indicates a section removed from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 Section 1. Section 11-812, Arizona Revised Statutes, is amended to
3 read:

4 11-812. Restriction on regulation; exceptions; aggregate
5 mining regulation; definitions

6 A. ~~Nothing contained in~~ Any ordinance authorized by this chapter
7 ~~shall~~ MAY NOT:

8 1. Affect existing uses of property or the right to its continued
9 use or the reasonable repair or alteration of the property for the purpose
10 for which used at the time the ordinance affecting the property takes
11 effect.

12 2. Prevent, restrict or otherwise regulate the use or occupation of
13 land or improvements for railroad, mining, metallurgical, grazing or
14 general agricultural purposes, if the tract concerned is five or more
15 contiguous commercial acres. For the purposes of this paragraph:

16 (a) "General agricultural purposes" includes agritourism as defined
17 in section 3-111, but does not include any of the following:

18 (i) Food establishments ~~THAT ARE~~ under the authority of the
19 department of health services pursuant to section 36-136, subsection I ~~AND~~
20 that are associated with an agritourism business.

21 (ii) Rodeo events that are open to the general public and that sell
22 tickets for admission. For the purposes of this item, rodeo events do not
23 include generally accepted agricultural practices associated with
24 livestock and equine operations.

25 (iii) The cultivation of cannabis as defined in section 13-3401 or
26 marijuana as defined in section 13-3401 or 36-2801.

27 (b) "Mining" has the same meaning prescribed in section 27-301.

1 3. Prevent, restrict or otherwise regulate the use or occupation of
2 land or improvements for agricultural composting, if the tract is five or
3 more contiguous commercial acres. An agricultural composting operation
4 shall notify in writing the board of supervisors and the nearest fire
5 department of the location of the composting operation. If the nearest
6 fire department is located in a city, town or fire district where the
7 agricultural composting is not located, the agricultural composting
8 operation shall also notify in writing the fire district in which the
9 operation is located. Agricultural composting is subject to sections
10 3-112 and 49-141. For the purposes of this paragraph, "agricultural
11 composting" has the same meaning prescribed in section 9-462.01,
12 subsection G.

13 4. Prevent, restrict or otherwise regulate the otherwise lawful
14 discharge of a firearm or air gun or use of archery equipment on a private
15 lot or parcel of land that is not open to the public on a commercial or
16 membership basis.

17 5. PREVENT, RESTRICT OR OTHERWISE REGULATE THE USE OR OCCUPATION OF
18 LAND OR IMPROVEMENTS FOR THE CONSTRUCTION AND OPERATION OF A SMALL MODULAR
19 REACTOR IF THE SMALL MODULAR REACTOR IS COLOCATED WITH AN EXTRA HIGH LOAD
20 FACTOR CUSTOMER[. AS DEFINED BY THE CORPORATION COMMISSION.] THAT RECEIVED
21 ALL APPLICABLE ZONING ENTITLEMENTS AND IF THE OWNER OR OPERATOR OF THE
22 SMALL MODULAR REACTOR HAS PROVIDED PUBLIC NOTICE AND HELD AT LEAST ONE
23 PUBLIC COMMENT SESSION IN THE COUNTY IN WHICH THE SMALL MODULAR REACTOR'S
24 LOCATION IS PROPOSED. FOR THE PURPOSES OF THIS PARAGRAPH, [~~"COLOCATED
25 WITH", "EXTRA HIGH LOAD FACTOR CUSTOMER" AND~~] "SMALL MODULAR NUCLEAR
26 REACTOR" [~~HAVE THE SAME MEANINGS ADOPTED BY THE CORPORATION COMMISSION
27 PURSUANT TO SECTION 40-360.14~~] [~~MEANS A GENERATION III+ OR GENERATION IV
28 NUCLEAR GENERATING UNIT WITH A NAMEPLATE RATING OF NOT GREATER THAN THREE
29 HUNDRED MEGAWATTS~~].

30 B. A nonconforming business use within a district may expand if the
31 expansion does not exceed one hundred ~~per cent~~ PERCENT of the area of the
32 original business.

33 C. For the purposes of subsection A, paragraph 2 of this section,
34 mining does not include aggregate mining operations in an aggregate mining
35 operations zoning district established pursuant to this section. The
36 board of supervisors of any county with a population of more than two
37 million persons shall designate and establish the boundaries of an
38 aggregate mining operations zoning district on the petition of at least
39 one hundred persons who reside within one-half mile of an existing
40 aggregate mining operation. In addition, the board of supervisors of any
41 county may establish, in its discretion and on the board's initiative, one
42 or more aggregate mining operations zoning districts. Aggregate mining
43 operations zoning districts may only be located in areas that are
44 inventoried and mapped as areas of known reserves or in areas with
45 existing aggregate mining operations. Subject to subsections E and F of
46 this section, a county and the state mine inspector may jointly adopt, as
47 internal administrative regulations, reasonable aggregate mining

1 operations zoning district standards limited to permitted uses, procedures
2 for approval of property development plans and site development standards
3 for dust control, height regulations, setbacks, days and hours of
4 operation, off-street parking, screening, noise, vibration and air
5 pollution control, signs, roadway access lanes, arterial highway
6 protection and property reclamation for which aggregate mining operations
7 are not otherwise subject to federal, state or local regulation or a
8 governmental contractual obligation. Regulations jointly adopted pursuant
9 to this subsection by the county and the state mine inspector shall not
10 prohibit the activities included in the definition of mine pursuant to
11 section 27-301, paragraph 8 or duplicate, conflict with or be more
12 stringent than applicable federal, state or local laws.

13 D. The board of supervisors of any county that establishes an
14 aggregate mining operations zoning district shall appoint an aggregate
15 mining operations recommendation committee for the district. The
16 committee consists of not more than seven operators, or representatives of
17 operators, of active aggregate mining operations in any district within
18 the county and an equal number of private citizens, who are not operators,
19 who are not employed by operators and who do not represent operators,
20 residing within three miles of the boundaries of aggregate mining
21 operations or a proposed aggregate mining operation in the district for
22 which the committee is established. The initial members appointed to the
23 committee shall be deemed the primary members, and the board of
24 supervisors shall appoint not more than five alternate members who
25 represent operators and shall appoint not more than five alternate members
26 who are private citizens. Alternate members may serve at meetings of the
27 committee when a primary member is unable to attend. An aggregate mining
28 operator may serve on more than one committee in the same county. The
29 board of supervisors shall determine the length of terms of members of the
30 committee and shall stagger the initial appointments so that not all
31 members' terms expire at the same time. Members of the committee who no
32 longer qualify for membership as provided by this subsection are subject
33 to removal and replacement by the board of supervisors. The committee
34 shall elect a member who is an aggregate mining operator to serve as
35 chairperson for the first year in which the committee is created. For
36 each year thereafter, the chairperson shall be elected by the members of
37 the committee with a member who is a private citizen and a member who is
38 an aggregate mining operator serving as chairperson in alternate years.
39 The committee is subject to the open meeting requirements of title 38,
40 chapter 3, article 3.1.

41 E. Within ninety days after an aggregate mining operations
42 recommendation committee is established, the committee shall notify all
43 existing aggregate mining operators in the district of the application of
44 this section and title 27, chapter 3, article 6 to the aggregate mining
45 operation. In addition, the committee shall:

46 1. By a majority vote of all members make recommendations to the
47 board of supervisors for aggregate mining zoning districts and

1 administrative regulations as provided in this section. The board of
2 supervisors may adopt or reject the recommendations but may not make any
3 modifications to the recommendations unless the modification is approved
4 by a majority of the members of the recommendation committee.

5 2. Serve as a forum for mediation of disputes between members of
6 the public and aggregate mining owners or operators. If the committee is
7 unable to resolve a dispute, the committee shall transmit the matter to
8 the state mine inspector, with written findings and recommendations, for
9 further action.

10 3. Hear written complaints filed with the state mine inspector
11 regarding alleged material deviations from approved community notices for
12 aggregate mining operations and make written recommendations to the state
13 mine inspector pursuant to section 27-446.

14 F. Any administrative regulations adopted by a board of supervisors
15 pursuant to this section are not effective until the regulations are
16 approved by the state mine inspector. The [STATE MINE](#) inspector may
17 disapprove the administrative regulations adopted by the board of
18 supervisors only if they duplicate, conflict with or are more stringent
19 than applicable federal, state or local laws, rules or regulations. If
20 the [STATE MINE](#) inspector disapproves the administrative regulations, the
21 [STATE MINE](#) inspector must provide written reasons for the disapproval. The
22 [STATE MINE](#) inspector shall not make any modification to the administrative
23 regulations as adopted by the board of supervisors unless the modification
24 is approved by a majority of the members of the board of supervisors.

25 G. A person or entity is subject to this chapter if the use or
26 occupation of land or improvements by the person or entity consists of or
27 includes changing, remanufacturing or treating human sewage or sludge for
28 distribution or resale. These activities are not exempt from this chapter
29 under subsection A, paragraph 2 of this section.

30 H. A county shall not require as a condition for a permit or for
31 any approval, or otherwise cause, an owner or possessor of property to
32 waive the right to continue an existing nonconforming outdoor advertising
33 use or structure without acquiring the use or structure by purchase or
34 condemnation and paying just compensation unless the county, at its
35 option, allows the use or structure to be relocated to a comparable site
36 in the county with the same or a similar zoning classification, or to
37 another site in the county acceptable to both the county and the owner of
38 the use or structure, and the use or structure is relocated to the other
39 site. The county shall pay for relocating the outdoor advertising use or
40 structure, including the cost of removing and constructing the new use or
41 structure that is at least the same size and height. This subsection does
42 not apply to county rezoning of property at the request of the property
43 owner to a more intensive zoning district.

44 I. For the purposes of this section:

45 1. "Aggregate" has the same meaning prescribed in section 27-441.

46 2. "Aggregate mining" has the same meaning prescribed in section
47 27-441.

1 3. "Aggregate mining operation" means property that is owned,
2 operated or managed by the same person for aggregate mining.

3 4. "Operators" means persons who are actively engaged in aggregate
4 mining operations within the zoning district or proposed zoning district
5 and who have given notice to the state mine inspector pursuant to section
6 27-303.

7 ~~<<Sec. 2. Title 40, chapter 2, article 6.2, Arizona Revised~~
8 ~~Statutes, is amended by adding section 40-360.14, to read:~~

9 ~~40-360.14. Small modular reactors colocated with extra high~~
10 ~~load factor customers; rules~~

11 ~~A. THE COMMISSION SHALL ADOPT RULES TO IMPLEMENT SECTION 11-812,~~
12 ~~SUBSECTION A, PARAGRAPH 5 THAT MUST INCLUDE A DEFINITION FOR EACH OF THE~~
13 ~~FOLLOWING TERMS:~~

14 ~~1. COLOCATED WITH. THE COMMISSION'S DEFINITION SHALL SPECIFY ONE~~
15 ~~OR BOTH OF THE FOLLOWING:~~

16 ~~(a) THE DISTANCE IN FEET OR PARCELS BETWEEN THE SITE OF AN EXTRA~~
17 ~~HIGH LOAD FACTOR CUSTOMER AND THE SITE OF A SMALL MODULAR REACTOR.~~

18 ~~(b) THE QUALITY OR NATURE OF THE ELECTRICAL INTERCONNECTION BETWEEN~~
19 ~~THE EXTRA HIGH LOAD FACTOR CUSTOMER AND THE SMALL MODULAR REACTOR.~~

20 ~~2. EXTRA HIGH LOAD FACTOR CUSTOMER. THE COMMISSION'S DEFINITION:~~

21 ~~(a) MUST SPECIFY THE PEAK OR AVERAGE ANNUAL OR MONTHLY ENERGY~~
22 ~~DEMAND OF THE USER THAT IS MEASURED IN MEGAWATTS OR MEGAWATT HOURS.~~

23 ~~(b) MAY NOT DISCRIMINATE BETWEEN DIFFERENT:~~

24 ~~(i) INDUSTRIES, SECTORS OR END USERS AND THE OWNERS OR OPERATORS OF~~
25 ~~END USERS OR THE PROPOSED LOCATIONS OF END USERS.~~

26 ~~(ii) END USERS IN ANY OTHER CAPACITY BEYOND THE USE OF ENERGY~~
27 ~~DEMAND AND OTHER ELECTRICAL-RELATED OPERATING NEEDS OR CHARACTERISTICS.~~

28 ~~B. THE COMMISSION MAY ADOPT DEFINITIONS FOR ANY OTHER TERMS THE~~
29 ~~COMMISSION DEEMS REASONABLE OR NECESSARY TO IMPLEMENT THIS SECTION AND~~
30 ~~SECTION 11-812.>>~~

31 Enroll and engross to conform

32 Amend title to conform

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